

CERRUTI, et al. v. DEVOTO, et al.

17CV42758

(21CV45366)

**PLAINTIFF’S MOTION TO CONSOLIDATE COMPLAINTS FOR
QUIET TITLE TO THE
“GARIBALDI QUARTZ LODE MINING CLAIM”**

This is an unlimited jurisdiction quiet title action involving potential clouds over the chain of title associated with APN 052-016-009, Lot Number 45, Survey No. 3502 embracing a portion of Section 24, Township 3 North of Range 12 East M.D.M. in the Angels Mining District, commonly referred to as the Garibaldi Quartz Lode Mining Claim, (hereinafter referred to as “subject property”).

Before the Court is an unopposed motion to consolidate this civil action with a nearly-identical civil action filed by plaintiffs (21CV45366). Both lawsuits involve claims of adverse possession to the same property by the same putative owners against many of the same defendants. Both complaints were verified (though only the 2021 lawsuit was verified by *both* Gilbert and David). The cases are obviously identical to one another, and but for some anomalies, this motion would be easily granted.

First, there is a serious concern regarding service of the motion. Plaintiffs’ motion to consolidate was filed 09/29/21 in only the 2017 action, and served by regular mail on defendants Vicki Brazil, Andrew Brazil, and Joan McCarthy. However, additional named defendants in the 2017 action – Charles Devoto, Christina Huberty, Annie Austin, and Sarah Singer – were not served with the motion. These unserved defendants happen to be the only defendants named in the 2021 action, and as such the only parties who might have reason to object to the motion to consolidate have not been served with the motion. Although plaintiffs are of the opinion that at least three of the four unserved defendants are “probably deceased,” that is not sufficient for due process concerns.

Second, even without the service concern, the basis for the motion is suspect. Pursuant to CCP §1048(a), “when actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.” Trials courts have wide discretion in this regard, and are to be guided by the precept that consolidation is supposed to enhance trial court efficiency and avoid inconsistency and undue confusion. (*Todd-Stenberg v. Dalkon Shield Claimants Trust*

(1996) 48 Cal.App.4th 976, 979-980). Though technically tethered to the question of coordination, many courts consider the factors set forth in CCP §403 *et seq* and CRC 3.500 as relevant to the question of consolidation for all purposes. Those factors include (1) the existence of a significant and predominating common question of fact or law between the actions; (2) the convenience of the parties, witnesses, and counsel; (3) the relative development of the actions and the work product of counsel; (4) the efficient utilization of judicial resources; (5) the court's calendar; (6) the disadvantages of duplicative and inconsistent rulings, orders, or judgments; and (7) the likelihood of settlement in the absence of coordination.

The concern here is not the practical benefit to be gained by consolidation (which is obvious), but rather the equitable underpinnings to the motion. According to plaintiffs' counsel, the 2021 lawsuit was filed solely because "plaintiffs could not complete service of [certain] defendants within the initial three year statute of service of summons." (Motion 2:27-3:1.) While counsel's candor is appreciated, those defendants – Charles Devoto, Christina Huberty, Annie Austin, and Sarah Singer – were entitled as a matter of law to possible dismissal of the action for failure to effectuate service of the summons pursuant to CCP §§ 583.210 and 583.250. Moreover, the statute provides that "no further proceedings shall be held in the action." §583.250(a)(1).

As one Court noted, "it is possible that actions may be thoroughly related in the sense of having common questions of law or fact, and still not be consolidated, if the trial court, in the sound exercise of its discretion, chooses not to do so." (*Askew v. Askew* (1994) 22 Cal.App.4th 942, 964.) That is the case here. Unless and until plaintiffs demonstrate an exception to statutory dismissal requirements, this Court will not proceed to consolidate as requested.

This hearing is continued to December 17, 2021 at 9:00 a.m. in Dept. 2. Any supplemental filings plaintiffs want this Court to consider, as well as updated complete proofs of service, must be filed and served at least 10 Court days prior to the next hearing.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiffs to provide notice of this Ruling to all defendants in both cases.

WEBER v. PAUL

21CV45397

DEFENDANT’S MOTION TO TRANSFER ACTION TO CONTRA COSTA COUNTY AND FOR ATTORNEY’S FEES

This is a personal services dispute regarding residential landscaping services. Before the Court is defendant’s opposed motion to transfer the action to Contra Costa County.

The salient facts, which are admittedly hard to extract, appear to be as follows:

On or about 03/05/20, plaintiff David Weber and defendant Denise Paul entered into a contract by which plaintiff (landscaper) agreed to provide defendant (homeowner) with landscape services for a fixed amount of \$9,480.00.

According to plaintiff, this was a heavily discounted estimate, offered on defendant’s promise that she had more future projects. Apparently, those “other” projects never came to fruition, and the former working relationship degenerated.

On 09/05/20, defendant filed a small claims action (apparently in Contra Costa or Alameda County) against plaintiff and his landscape company for \$5,000. Weber did not appear for trial and default judgment was entered in the amount of \$3,165.92. Weber’s subsequent motion to vacate was denied, and his attempted appeal denied as untimely.

Four weeks after the small claims case came to an end, plaintiff commenced the present action in Calaveras County. The operative pleading – while far from any beacon of clarity – purports to contain six causes of action, ranging from equity to contract and tort. Each cause of action must be separately considered to determine whether Calaveras County represents a proper venue. (*Brown v. Superior Court* (1984) 37 Cal.3d 477, 488; *Capp Care, Inc. v. Superior Court* (1987) 195 Cal.App.3d 504, 508.)

Venue rules designate a particular county (or counties) within California as the proper place for trial. The purpose of venue rules is to give defendants some control in the choice of where they are sued. Venue is not jurisdictional in the fundamental sense, though certain actions can “only” be brought in specific counties. The test largely begins with whether the main relief sought in the original operative pleading relates to rights in realty (local) or personalty (transitory). Venue is to be determined at the outset of the action based on the averments set forth in the operative pleading when the motion to